

California Regional Water Quality Control Board
Santa Ana Region

STAFF REPORT

July 18, 1997

ITEM:

SUBJECT: Waste Discharge Requirements for Cajon Properties, dba Wagon Train Venture, Highway 138 and Wagon Train Road, Cajon Pass Area, San Bernardino County, Order No. 97-50

DISCUSSION:

On April 23, 1993, the Board adopted Order No. 93-27, waste discharge and producer/user reclamation requirements issued to Cajon Properties (hereinafter, discharger) for the discharge of 4,000 gallons per day of wastewater from a proposed package treatment plant. The treatment plant was to process wastewater from two fast food restaurants and a gasoline service station proposed to be constructed on a 5.74 acre property located at Highway 138 and Wagon Train Road in the Cajon Pass area of San Bernardino County (see Attachment "A"). The processed wastewater was to be reclaimed for landscape irrigation on an adjacent property which is owned by Caltrans. The facility has not yet been built.

On May 19, 1997, the discharger submitted an updated report of waste discharge for the discharge of secondary treated wastewater from a proposed wastewater package treatment plant which will have a design capacity of 14,000 gallons per day. The discharger has revised the original proposal to include the construction of a car wash, convenience store with gasoline pumps and two fast food restaurants on 6.67 acres at the original location. The treated wastewater will be discharged to seepage pits instead of being reclaimed for landscape irrigation.

The facility overlies a non-water bearing subbasin which drains to the Bunker Hill I Groundwater Subbasin. The beneficial uses of the Bunker Hill I Groundwater Subbasin include municipal and domestic supply, agricultural supply, industrial service supply, and industrial process supply.

The proposed order contains total dissolved solids (TDS) and total inorganic nitrogen (TIN) limits which are for the protection of the Bunker Hill I Groundwater Subbasin. Biochemical oxygen demand (BOD) and total suspended solids (TSS) limits are specified to ensure that nuisance conditions do not result from the treatment of the waste. The proposed order should be adequate to protect the beneficial uses of affected receiving waters and public health.

RECOMMENDATION:

Adopt Order No. 97-50 as presented.

Comments were solicited from the following agencies:

State Water Resources Control Board, Office of the Chief Counsel - Ted Cobb
State Water Resources Control Board, Division of Water Quality - John Youngerman
State Department of Water Resources - Glendale
State Department of Health Services - San Bernardino
San Bernardino County Department of Environmental Health Services - Pam Bennett
San Bernardino County Department of Building and Safety - Leon Reed
San Bernardino County Transportation/Flood Control Department, Water Conservation Division
- Naresh Varma
San Bernardino County Department of Planning, North Desert Regional Planning Team
- Nancy Sansonetti
Caltrans District 8
Arrow Engineering - Roger Glidden

Attachment "A"

Location Map

California Regional Water Quality Control Board
Santa Ana Region

Order No. 97-50

Waste Discharge Requirements
for
Cajon Properties dba Wagon Train Venture
Highway 138 and Wagon Train Road, Cajon Pass Area
San Bernardino County

The California Regional Water Quality Control Board, Santa Ana Region (hereinafter Board), finds that:

1. Cajon Properties (hereinafter discharger) is currently regulated under waste discharge and producer/user reclamation requirements, Order No. 93-27, which was adopted by the Board on April 23, 1993. The discharger had proposed to construct two fast food restaurants and a gasoline service station on 5.74 acres located east of Interstate 15 in the Cajon Pass area of San Bernardino County. Wastewater from the operation of the facilities was to be treated at a proposed onsite package treatment plant. Order No. 93-27 regulates the discharge of approximately 4,000 gallons per day from the proposed package treatment plant. The discharge from the plant was to be reclaimed for landscape irrigation. The facility has not yet been built.
2. On May 19, 1997, the discharger submitted an updated application for the discharge of wastewater from the project. The discharger has revised the original proposal to include the construction of a car wash, a convenience store with gasoline pumps and two fast food restaurants on 6.67 acres. The wastewater from the proposed development will be treated at an onsite package treatment plant and discharged into seepage pits. Wastewater is no longer proposed to be used for landscape irrigation, as previously planned.
3. The proposed package treatment plant has a treatment design capacity of up to 14,000 gallons per day. The treatment system consists of manually cleaned bar screen, flow equalization chamber, anoxic tank, aeration tanks, final clarifier, and aerobic sludge digester. Sludge from the facility will be hauled as needed by authorized haulers for disposal at an approved site.
4. The treatment facility and the point of discharge are located southerly of California State Highway 138 within the northeast $\frac{1}{4}$ of Section 35, T3N, R6W of the SBB&M.
5. A Water Quality Control Plan (Basin Plan) became effective on January 24, 1995. The Basin Plan contains beneficial uses and water quality objectives for waters in the Santa Ana Region.

6. The requirements contained in this order are necessary to implement the Basin Plan.
7. The discharge is located on a non-water bearing subbasin which drains to Bunker Hill I Groundwater Subbasin, the beneficial uses of which include:
 - a. Municipal and domestic supply.
 - b. Agricultural supply,
 - c. Industrial service supply, and
 - d. Industrial process supply.
8. It is necessary and appropriate to require control of mineral constituents in order to meet water quality objectives and to protect the beneficial uses of the affected groundwater subbasin.
9. The Regional Board has considered antidegradation pursuant to State Board Resolution No. 68-16 and finds that this discharge is consistent with those provisions.
10. On November 19, 1995, the San Bernardino County Board of Supervisors adopted a Negative Declaration for the project in accordance with California Environmental Quality Act (Public Resources Code, Section 21000 et seq.). Board staff has reviewed and considered the above Negative Declaration and finds that this project should not cause any adverse environmental impacts on water quality if conducted in accordance with the terms and conditions of this order.
11. The Regional Board has notified the discharger and other interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written views and recommendations.
12. The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that the Cajon Properties dba Wagon Train Venture, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. DISCHARGE SPECIFICATIONS

1. The discharge of wastes containing constituent concentrations in excess of the following limits is prohibited:

Constituent	Maximum Daily Limit	Monthly Average
	(mg/l)	(mg/l)
Biochemical Oxygen Demand	45	30
Suspended Solids	45	30

- 2.a. The discharge of wastes containing concentrations in excess of the following limits is prohibited:

Constituent	12-Month Average
Total Dissolved Solids	510 mg/l
Total Inorganic Nitrogen	10 mg/l

- 2.b. The discharge of wastes containing a 12-month average total dissolved solids concentration which exceeds the 12-month average total dissolved solids concentration in the water supply by more than 250 mg/l is prohibited.

For Discharge Specification No. 2.a. and 2.b., whichever total dissolved solids limit that results in the lower concentration shall be controlling.

3. The pH of the discharge shall at all times be within the range of 6 and 9 pH units.
4. The waste discharged shall be maintained below the surface of the ground at all times.
5. The discharge of wastes to property not owned or controlled by the discharger is prohibited unless authorized in this order.
6. The discharge of highly mineralized wastes to the ground is prohibited.
7. The discharge of any substances in concentrations toxic to human, animal, plant or aquatic life is prohibited.

B. Reporting Requirements

1. The discharger shall report any noncompliance which may endanger health or the environment. Any such information shall be provided orally to the Executive Officer or authorized representative within 24 hours from the time the discharger becomes aware of the circumstances. A written submission shall also be provided within five days of the time the discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected; the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance. The Executive Officer, or an authorized representative, may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.
2. At least 30 days prior to the operation of the wastewater treatment plant, the discharger shall submit a copy of an "Operation and Maintenance Manual (O&M Manual)". Once the O&M Manual has been developed, the discharger shall update it as necessary to conform with latest plant changes and requirements. The O&M Manual shall be readily available to operating personnel onsite. The O&M Manual shall include the following:
 - a. Description of the treatment plant table of organization showing the number of employees, duties and qualifications and plant attendance schedules (daily, weekends and holidays, part-time, etc). The description should include documentation that the personnel are knowledgeable and qualified to operate the treatment facility so as to achieve the required level of treatment at all times.
 - b. Detailed description of safe and effective operation and maintenance of treatment processes, process control instrumentation and equipment.
 - c. Description of laboratory and quality assurance procedures.
 - d. Process and equipment inspection and maintenance schedules.
 - e. Description of safeguards to assure that, should there be reduction, loss, or failure of electric power, the discharger will be able to comply with the terms and conditions of this order.
 - f. Description of preventive (fail-safe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. These plans shall identify the possible sources (such as loading and storage areas, power outage, waste treatment unit failure, process equipment failure, tank and piping failure) of accidental discharges, untreated or partially treated waste bypass, and polluted drainage.

C. Provisions

1. The discharger shall comply with Monitoring and Reporting Program No. 97-50 as issued by the Executive Officer. This monitoring and reporting program may be modified by the Executive Officer at any time during the term of this order, and may include a reduction or an increase in the number of parameters to be monitored, the frequency of the monitoring or the number and size of samples collected.
2. Neither the treatment nor the discharge of wastes shall cause a nuisance or pollution as defined in Section 13050 of the California Water Code.
3. Compliance with the monthly and 12-month average limits specified in Discharge Specifications A.1. and 2.a. shall be determined from the flow-weighted running average of all samples taken during the specified periods.
4. The package treatment plant and disposal facilities shall be protected from a 100-year frequency flood.
5. The discharger shall, at all times, properly operate and maintain all facilities and systems of treatment and control including sludge use, disposal facilities, and related appurtenances which are installed or used by the discharger to achieve compliance with this order. Proper operation and maintenance also includes adequate laboratory controls, appropriate quality assurance procedures, effective performance, adequate funding, adequate staffing and training and adequate process controls. This provision requires the operation of back up or auxiliary facilities or similar systems which are installed by a discharger only when the operation is necessary to achieve compliance with the conditions of the order.
6. The discharger shall give advance notice to the Regional Board as soon as possible of any planned physical alterations or additions to the permitted facility or changes in operation or activity that may result in noncompliance with these waste discharge requirements.
7. The discharger shall file with the Board a report of waste discharge at least 120 days before making any material change or proposed change in the character, location or volume of the discharge or in the method of disposal of the discharge, or any proposed change in ownership of the facility.
8. The discharger shall maintain a copy of this order at the site so that it is available at all times to site operating personnel.
9. The provisions of this order are severable, and if any provision of this order, or the application of any provisions of this order to any circumstance, is held invalid, the application of such provision to other circumstances, and the remainder of this order shall not be affected thereby.

10. Collected screenings, sludge, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer of the Regional Board.
11. The discharger shall take all reasonable steps to minimize or prevent any discharge that has a reasonable likelihood of adversely affecting human health or the environment.
12. This order does not exempt the operator of this facility from compliance with any other laws, regulations or ordinances which may be applicable; this order does not legalize the discharge of waste from the facility and they leave unaffected any further restraint on the disposal of wastes at this facility which may be contained in other statutes or required by other agencies.
13. The Board, and other authorized representatives shall be allowed:
 - a. Entry upon premises where a regulated facility or activity is located or conducted, including treatment or discharge facilities, sludge use and disposal activities, or facilities where records must be kept under the conditions of this permit;
 - b. Access to copy any records that are kept under the conditions of this order;
 - c. To inspect any facility, equipment (including monitoring and control equipment), practices, or operations regulated or required under this order; and
 - d. To photograph, sample and monitor for the purpose of assuring compliance with this order.
14. Order No. 93-27 is hereby rescinded.

I, Gerard J. Thibeault, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an order adopted by the California Regional Water Quality Control Board, Santa Ana Region, on July 18, 1997.

Gerard J. Thibeault
Executive Officer

California Regional Water Quality Control Board
Santa Ana Region

Monitoring and Reporting Program No. 97-50
for
Cajon Properties dba Wagon Train Venture
Highway 138 and Wagon Train Road, Cajon Pass Area
San Bernardino County

A. General Monitoring Provisions

1. Records of monitoring information shall include:
 - a. The date, exact place, and time of sampling or measurements;
 - b. The individual(s) who performed the sampling or measurements;
 - c. The date(s) analyses were performed;
 - d. The individual(s) who performed the analyses;
 - e. The analytical techniques or methods used; and
 - f. The results of such analyses.
2. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to insure their continued accuracy.
3. The flow measurement shall be calibrated at least once per year or more frequently to insure continued accuracy.
4. All analyses shall be conducted at a laboratory certified for such analyses by the State Department of Health Services or at a laboratory approved by the Executive Officer of the Regional Board.

B. Effluent Monitoring

1. A sampling station shall be located where representative samples of the effluent can be obtained.

2. The following shall constitute the effluent monitoring program:

Constituent	Units	Type of Sample	Minimum Frequency of Sample
Flow	gallons	Flow meter	Total Daily
Biochemical Oxygen Demand	mg/l	24-hour Composite	Weekly
Suspended Solids	mg/l	24-hour Composite	Weekly
Total Dissolved Solids	mg/l	24-hour Composite	Monthly
Total Inorganic Nitrogen	mg/l	24-hour Composite	Monthly
pH	pH Units	Grab	Monthly

3. Weekly samples shall be collected on representative days of each week.
4. Monthly samples shall be taken during the first week of each month.
5. A permanent log of all wastes hauled from the facility for final disposal elsewhere shall be maintained. This should include volume, type, and final disposal site of each waste.

C. Water Supply Monitoring

1. At least once annually, in August, a sample of the water supplied to the project shall be collected and analyzed for the following constituents:

Specific Conductance	Chloride	Sodium
Total Dissolved Solids	Potassium	Nitrate
Total Hardness	Bicarbonate	Fluoride
Calcium	Boron	Sulfate
Magnesium	pH	

2. All of the above constituents shall be expressed in "mg/l" except specific conductance and pH, which shall be expressed in "micromhos/cm" and "pH units", respectively.

D. Reporting

1. Monitoring reports shall be submitted by the 30th day of the month following sampling.

2. The discharger shall tabulate the monitoring data to clearly illustrate compliance and/or noncompliance with the permit requirements. If no discharge occurs during the previous monitoring period, a letter to that effect shall be submitted in lieu of a monitoring report.
3. For every item where the requirements are not met, the discharger shall submit a statement of the actions undertaken or proposed which will bring the discharge into full compliance with requirements at the earliest time and submit a timetable for correction.
4. All reports shall be signed by a responsible officer or duly authorized representative of the discharger and shall be submitted under penalty of perjury.

Ordered by _____

Gerard J. Thibeault
Executive Officer

July 18, 1997